

THE HONOURABLE SRI JUSTICE K.SURENDER**CRIMINAL PETITION No.9890 OF 2022****ORDER:**

This Criminal Petition is filed under Sections 437 and 439 of Code of Criminal Procedure (for short "Cr.P.C") seeking regular bail to the petitioner who is arrayed as Accused in Crime No.1213 of 2022 pending on the file of Station House Officer, Gachibowli Police Station, Cyberabad registered for the offences punishable under Sections 417, 420 and 376 of Indian Penal Code (IPC).

2. Heard learned counsel for the petitioner-Accused and learned Additional Public Prosecutor for the respondent-State. Perused the record.

3. Briefly the facts of the case are that the petitioner was remanded to custody on the basis of the complaint given by the defacto complainant alleging that she was acquainted with this petitioner since August, 2017 and there was a proposal for marriage. However, the mother of the petitioner did not accept for marriage, the marriage did not happen. The mother of the *de facto* complainant died in the month of May, 2021, during which time, the

petitioner again promised to marry her and had physical relation with the *de facto* complainant. Thereafter, the petitioner started avoiding the *de facto* complainant, as such, the complaint is filed.

4. Learned counsel for the petitioner submits that even according to *de facto* complainant, they were known to each other over a period of five years and it cannot be said that there was any force by this petitioner.

5. Learned Additional Public Prosecutor opposes the grant of bail to the petitioner-Accused.

6. Admittedly, the petitioner and the *de facto* complainant are known to each other since five years and it is not the case that over a period the petitioner had in any manner made any false statements. The allegation is that believing the petitioner's promise of marriage, they are physically involved. Since the petitioner is in jail from 27.10.2022, he can be granted the relief of regular bail.

7. Accordingly, the Criminal Petition is allowed and the petitioner-Accused is granted bail subject to the following conditions:

- i) The petitioner-Accused is directed to be released on bail on his executing personal bond for a sum of Rs.25,000/- (Rupees Twenty Five Thousand only) with two sureties for a like sum each, to the satisfaction of X Additional Metropolitan Magistrate, Kukatpally.
- ii) After release on bail, the petitioner-Accused shall appear before the concerned Station House Officer on every Monday, Wednesday and Friday between 10.30 AM and 01.00 PM for a period of six (06) weeks and thereafter as and when required for the purpose of investigation.
- iii) The petitioner-Accused shall not in any manner contact either the *de facto* complainant or her family members, failing which the prosecution is at liberty to move for cancellation of bail granted to this petitioner-Accused.
- iv) The petitioner-Accused shall abide by the other conditions stipulated in Section 437(3) of Cr.P.C.

Miscellaneous applications, pending if any, shall stand closed.

K.SURENDER, J

Date: 16.11.2022
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